

(b) One of the purposes of this legislation was to afford a federal right in federal courts because, by reason of prejudice, passion, neglect, intolerance, or otherwise, state laws might not be enforced and the claims of citizens to the enjoyment of rights, privileges and immunities guaranteed by the Fourteenth Amendment might be denied by state agencies. Pp. 174-180.

(c) The federal remedy is supplementary to the state remedy, and the state remedy need not be sought and refused before the federal remedy is invoked. P. 183.

(d) Misuse of power possessed by virtue of state law and made possible only because the wrongdoer is clothed with the authority of state law is action taken "under color of" state law within the meaning of § 1979. *United States v. Classic*, 313 U. S. 299; *Screws v. United States*, 325 U. S. 91. Pp. 183-187.

3. Since § 1979 does not contain the word "wilfully," as does 18 U. S. C. § 242, and § 1979 imposes civil liability rather than criminal sanctions, actions under § 1979 can dispense with the requirement of showing a "specific intent to deprive a person of a federal right." P. 187.

4. The City of Chicago is not liable under § 1979, because Congress did not intend to bring municipal corporations within the ambit of that section. Pp. 187-192.

272 F. 2d 365, reversed.

*Donald Page Moore* argued the cause for petitioners. With him on the brief were *Morris L. Ernst*, *Ernst Liebman*, *Charles Liebman* and *John W. Rogers*.

*Sydney R. Drebin* argued the cause for respondents. With him on the brief was *John C. Melaniphy*.

MR. JUSTICE DOUGLAS delivered the opinion of the Court.

This case presents important questions concerning the construction of R. S. § 1979, 42 U. S. C. § 1983, which reads as follows:

"Every person who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory, subjects, or causes to be subjected, any